ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	22nd Commission Meeting
DATE:	23 Oct. 2018
TIME:	3:30 pm
VENUE:	Chairperson's Chamber

#	AGENDA	DECISIONS
1.	Proposal related to institution of "Ombudsman" functions- Director, DoPS *The proposal is a follow-up of the visit to Anti-Corruption and Civil Right Commission (ACRC) of South Korea and the Office of Ombudsman of Philippines by five officials, led by Director DoPS, from 25 April- 4 May, 2018.* *As per the resolutions of the 10th and 11th Session of the Second Parliament, the ACC has to institute a system to manage cases that are administrative in nature in-house until an independent Office of Ombudsman is established.*	Based on the learning experiences from the visit, Director of DoPS proposed the following: i) Baseless complaints that ultimately gets dropped be closed at the CEC level after evaluation and not necessarily be reviewed further by the Commission. ii) To review and discontinue sharing of complaints with agencies for action. iii) ACC to institute a system for integrity checks. Commission pointed that the first proposal will not be appropriate and the third proposal is already planned to be executed in the 12th FYP. Commission directed the following: - DoPS to further review and propose strategies to handle complaints that are administrative in nature as against the current system of sharing complaints with individual agencies concerned. Need to balance the practical challenges of the ACC and agencies who also do not have the mandate and capacity to investigate such cases. - Recalling the decision taken in the past, DoPS was directed to also review the time given to agencies to submit Action Taken Reports (30 days) to the ACC. - DoPS to present the proposal to the Commission on or before 15 November, 2018.
2.	Way forward to investigate back-log complaints qualified for investigation and assigned to DoI (Land cases) *With reference to 21st Commission meeting held on 16 October, 2018.*	Director of DoI proposed following three options to investigate backlog of land cases (about 34 cases): i) Share all the backlog cases that qualified for investigation and assigned to DoI with the NLCS for investigation and action. ii) Deploy dedicated teams (about three teams) involving the DoPS staff to do preliminary assessment of the cases. Wherever required, the teams can seek NLCS' support. iii) Follow conventional approach to assign the cases (whenever free).

		Commission's decision: - Undertake deskwork on the cases by assigning dedicated teams. However, this will be possible only after e-Sakor is operationalized by NLCS. - Damcho Tenzin and Chimi Rinzin from DoPS to join the teams from the DoI. - Commissioner in-charge and Director (DoI) to regularly meet and oversee the preliminary investigations.
3.	Apprise on the advisory mission of ACPIS Project from 3-9 November, 2018 – PPS *The mission is as part of the UNDP's support to the ACC for the FY 2017-18.*	- Endorsed the programme but directed to be prepared with alternate school (Sarpang CS) for any changes that may arise due to interruption in domestic flight schedule.
4.	Apprise on UNDP Seoul Policy Centre's Call for Expression of Interests (EoI) (*Seed funding of USD 50,000 and advisory support*) – PPS	The Call for EoI solicited proposals from UNDP Country Offices to benchmark one of the following policy anti-corruption tools of Korea: i) Anti-Corruption Initiative Assessment of ACRC; and ii) Corruption Risk Assessment of ACRC. Commission's decision: - As also recommended by the Dept. of Prevention and Education, Commission decided to submit a proposal for seed funding and advisory support to enhance National Integrity Assessment methodologies and effective monitoring of anti-corruption measures.
5.	Present the finding of the review and proposal on institution of GRM – PPS *As a follow-up to the survey administered on GRM and draft revised GRM discussed with the Management on 17 October, 2018.*	- Commission appreciated PPS's initiative and approved the revised GRM in principle (GRM attached). - PPS to finalize the guideline and submit to the Commission. Also prepare to pilot the tool in-house in consultation with LD. - Directed to disseminate the GRM in smaller groups by Department/Division. - However, Commission pointed out that staff may not feel comfortable in reporting complaint/grievance through the HRO. Directed PPS to explore alternate solution such as instituting an online system or enhancing the use of suggestion box. - Further, also suggested to review if the issue can be solved by delegating the HRC's chairmanship to one of the Commissioners or Directors. - Commission opined that the mechanism should as far as possible minimize Conflicts of Interest. - The GRM will: • be applicable to deal with grievances/complaints related to staff received both from inside and outside the ACC. • receive complaints from both known and

		anonymous sources. • handle grievance/complaint related to i) Policy/HR decisions affecting individuals; ii) breach of Ethical Code of Conduct by oneself or colleagues; and iii) unsatisfactory service delivery/ performance by the staff.

Commissioner **Commissioner** **Chairperson**